

19STCV16075 19STCV16075

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 19STCV16075 Hearing Date: July 8, 2026 Dept: H

Ramos, et al. v.

Oros, Case No. 19STCV16075

ORDER ON MOTION

TO SUBSTITUTE SUCCESSOR IN INTEREST

Proposed Successor in Interest,

Portia Baker's Motion to Substitute Successor in Interest is DENIED.

Background

Plaintiffs

Mary Ramos ("Ramos") and Antonio Baker ("A. Baker") (together, "Plaintiffs") allegedly sustained injuries and damages in a May 29, 2017 motor vehicle accident.

On May

8, 2019, Plaintiffs filed a complaint, asserting causes of action against Brett M. Oros ("Oros") and Does 1-10 for: (1) Motor Vehicle and (2) General Negligence.

On July

1, 2020, Oros' default was entered.

On

March 23, 2022, default judgment was entered. On March 17, 2023, Judge Daniel M. Crowley ("Judge Crowley") granted Oros' motion to set aside/vacate default and/or default judgment.

On

March 20, 2023, Oros filed a cross-complaint, asserting causes of action against Ramos and Roes 1-25 for: (1) Indemnification, (2) Apportionment of Fault, and (3) Declaratory Relief.

On May

15, 2023, Plaintiffs filed a notice of appeal of Judge Crowley's March 17, 2023 order. On June 27, 2024, remittitur was issued (reversed).

On

December 8, 2025, Judge Lisa R. Jaskol denied Oros' second motion to set aside/vacate default and default judgment.

On

February 25, 2026, Plaintiffs filed a "Notice of Amended Entry of Judgment."

On

March 5, 2026, Oros filed a notice of appeal of the default judgment.

On

April 22, 2026, the Court ordered the cross-complaint stricken, based on Oros' default.

A

Status Conference Re: Appeal is set for July 8, 2026.

Legal

Standard

"On

motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

"(a)

The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of

perjury under the laws of this state stating all of the following:

(1) The

decedent's name.

(2) The

date and place of the decedent's death.

(3) 'No

proceeding is now pending in California for administration of the decedent's estate.'

(4) If

the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.

(5)

Either of the following, as appropriate, with facts in support thereof:

(A)

'The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.'

(B)

'The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.'

(6) 'No

other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.'

(7)

'The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.'"

(Code Civ., Proc., § 377.32, subd. (a).)

"Where

more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact." (Code Civ., Proc., § 377.32, subd. (b).)

"A

certified copy of the decedent's death certificate shall be attached to the affidavit or declaration." (Code Civ., Proc., § 377.32, subd. (c).)

Discussion

Proposed

successor in interest, Portia Baker, moves the Court, pursuant to Code of Civil Procedure sections 377.31 and 377.32, for an order substituting her in as a Plaintiff in this action, on the basis that A. Baker died on April 10, 2025 and that she is A. Baker's successor in interest.

Portia

Baker fails to attach a certified copy of A. Baker's death certificate, as required by Code of Civil Procedure § 377.32, subdivision (c). The Court denies the motion on this basis.